

Suresh Kumar S/O Late Hardas Mal, By ... vs State Of Rajasthan Through P.P on 26 February, 2020

Author: Pankaj Bhandari

Bench: Pankaj Bhandari

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Criminal Miscellaneous (Petition) No. 5304/2018

Suresh Kumar S/o Late Hardas Mal, By Caste Sindhi, Aged About
48 Years, R/o 116/147, Agarwal Farm Mansarovar, Jaipur

----Petitioner

Versus

1. State Of Rajasthan Through P.p., Rajasthan
2. Smt. Mohini Devi @ Meena W/o Suresh D/o Moolchand By
Caste Sindhi, Aged About 46 Years, R/o At Present Of
11/264, Malviya Nagar Jaipur (Rajasthan)

----Respondents

For Petitioner(s) : Mr. J.K. Moolchandani For Respondent(s) : Mr. Anoop Agarwal For State : Mr. Ramesh Choudhary, P.P. HON'BLE MR. JUSTICE PANKAJ BHANDARI Order 26/02/2020

1. Petitioner has preferred this Criminal Miscellaneous Petition seeking quashing of proceedings pending before learned Additional Judicial Magistrate No.8, Jaipur Metropolitan in Criminal Case No.54/2002.

2. It is contended by counsel for the petitioner that parties have amicably settled their dispute. They have obtained divorce under Section 13-B of the Hindu Marriage Act and have re-married.

3. Learned counsel for the complainant has not disputed the above facts. He has no objection to the quashing of the proceedings pending before the Court below.

4. I have considered the contentions.

(2 of 2) [CRLMP-5304/2018]

5. In B.S. Joshi & Ors. vs. State of Haryana & Anr., 2003 Cri.L.J. 2028, Apex Court in a matrimonial dispute had compounded the offence under Section 498-A IPC.

6. In view of the fact that parties have amicably settled their dispute, they have obtained divorce under Section 13-B of the Hindu Marriage Act and have re-married, the present Criminal Miscellaneous Petition is allowed and proceedings pending before learned Additional Judicial

Magistrate No.8, Jaipur Metropolitan in Criminal Case No.54/2002 stand quashed.

(PANKAJ BHANDARI),J Simple Kumawat /38 Powered by TCPDF (www.tcpdf.org)